

DKverse Commercial Adoption Agreement Template

Version 1.0 - June 25, 2026

Draft for business discussion only. This document is not legal advice and should be reviewed by qualified counsel before use.

This Commercial Adoption Agreement is a template for a third-party operator that wants to commercially launch, operate or monetize a DKverse-based product, marketplace, SaaS, app, website or business. It should be signed before any production launch or monetization.

1. Parties

This Commercial Adoption Agreement ("Agreement") is entered into between Rafael Minuti ("Licensor") and [LEGAL NAME OF OPERATOR] ("Operator" or "Licensee"). Licensor and Operator may be referred to individually as a "Party" and together as the "Parties".

2. Background

Licensor created and publicly released the DKverse project as source-available software for non-commercial review, testing, prototyping and contribution. Operator wishes to use the DKverse project or a substantial derivative of it for commercial purposes. The Parties therefore agree to the following commercial terms.

3. Commercial License Grant

Subject to this Agreement, Licensor grants Operator a non-exclusive, worldwide, non-transferable commercial license to use, modify, deploy and operate the DKverse software and substantial derivatives solely for the DKverse-Based Business described in Schedule 1. No ownership of the Licensed Work is transferred.

4. No Operational Role of Licensor

Licensor shall have no operational, managerial, supervisory, fiduciary, administrative, compliance, financial, tax, customer support, payment processing, data processing, security, regulatory, consumer protection, card-authentication, fraud-prevention or marketplace role in the DKverse-Based Business. Operator is the sole operator and is solely responsible for the business.

5. Economic Consideration

As consideration for the commercial license, Operator shall pay Licensor the amounts below.

5.1 Annual Royalty. For a period of ten (10) years beginning on the date of Commercial Launch, Operator shall pay Licensor an annual royalty equal to two percent (2.0%) of Adjusted Annual Net Operating Profit from the DKverse-Based Business.

5.2 Revenue Threshold. No annual royalty shall be due for any fiscal year in which Net Revenue from the DKverse-Based Business is less than USD 50,000, or the equivalent amount in another currency, unless otherwise agreed in Schedule 1.

5.3 Exit Fee. If, during the 10-year royalty term, Operator sells, transfers, assigns, merges, contributes, spins off, licenses or otherwise disposes of all or a substantial part of the DKverse-Based Business, Operator shall pay Licensor an exit fee equal to zero point fifty percent (0.50%) of Net Exit Proceeds attributable to the DKverse-Based Business. The exit fee shall be due at closing. If the buyer or successor assumes the royalty obligations in writing, the exit fee may be waived only with Licensor written consent.

5.4 Optional Buyout. The Parties may agree in writing to a one-time buyout of future royalty obligations. A commercially reasonable reference point is five (5) times the average annual royalties paid over the prior three (3) completed fiscal years, but no buyout shall be effective unless signed by both Parties.

6. Financial Definitions

"Net Revenue" means gross revenue actually received by Operator from the DKverse-Based Business, less refunds, chargebacks, sales taxes, VAT/GST or equivalent pass-through transaction taxes, payment processor fees and marketplace/app-store fees actually charged by third parties.

"Adjusted Annual Net Operating Profit" means Net Revenue minus reasonable, documented, arms-length operating expenses directly and primarily attributable to the DKverse-Based Business. It excludes non-arms-length charges, related-party charges above market, excessive founder or executive compensation above market, undocumented expenses, financing expenses, income taxes, extraordinary expenses, non-recurring restructuring expenses, impairment charges, goodwill charges, owner distributions and discretionary expenses not reasonably necessary to operate the business.

"Net Exit Proceeds" means total cash and non-cash consideration actually received or receivable by Operator, its owners or affiliates in connection with a sale or similar transaction involving the DKverse-Based Business, net of reasonable third-party transaction expenses, but before owner distributions and before any allocation intended to avoid this Agreement.

7. Reporting and Payment

Within ninety (90) days after the end of each fiscal year, Operator shall deliver a royalty statement showing Net Revenue, deductions, Adjusted Annual Net Operating Profit, royalty due, currency conversion and supporting calculation. Payment shall be made within fifteen (15) days after delivery of the statement.

8. Audit Right

Licensor may, no more than once per calendar year and upon reasonable notice, request records reasonably necessary to verify royalty calculations. If an audit shows an underpayment greater than five percent (5%) for the reviewed period, Operator shall promptly pay the shortfall, reasonable audit costs and interest at the maximum lawful rate or one percent (1%) per month, whichever is lower.

9. Taxes and Withholding

Operator is responsible for all taxes, filings, withholdings and reporting obligations arising from its business operations. Any withholding from payments to Licensor must be supported by official documentation and shall not exceed amounts required by applicable law.

10. Compliance and Risk Allocation

Operator shall comply with all applicable laws, regulations, platform rules, payment network rules, privacy/data protection laws, consumer protection rules, tax laws, advertising laws, intellectual property laws and marketplace rules. Operator is solely responsible for users, listings, transactions, payments, refunds, disputes, fraud prevention, card authenticity, shipping, custody, escrow, KYC/AML if applicable, content moderation, cybersecurity and data security.

11. Indemnity

Operator shall defend, indemnify and hold harmless Licensor from and against all claims, liabilities, damages, fines, penalties, losses, costs and expenses, including reasonable attorneys fees, arising out of or relating to the DKverse-Based Business, Operator products or services, users, transactions, payments, data, security incidents, taxes, consumer claims, regulatory claims, card authenticity claims, fraud, content, employment matters, contractors, intellectual property claims caused by Operator materials, or Operator breach of this Agreement.

12. No Warranty; No Support

The Licensed Work is provided as-is, without warranties of any kind. Licensor has no obligation to provide support, maintenance, hosting, updates, bug fixes, security patches, product management, implementation services, user support or business advice.

13. Limitation of Liability

To the maximum extent permitted by law, Licensor shall not be liable for lost profits, lost revenue, lost data, business interruption, indirect, incidental, special, consequential, exemplary or punitive damages. Licensor aggregate liability under this Agreement shall not exceed the amount actually paid to Licensor under this Agreement during the twelve (12) months preceding the claim, or USD 100 if no amounts were paid.

14. Intellectual Property

Licensor retains ownership of the original Licensed Work and reserved brand assets. Operator owns its independent implementation, modifications and business data, subject to Licensor retained rights and this Agreement. Operator grants Licensor a non-exclusive, royalty-free license to use feedback, suggestions and non-confidential improvements submitted to the public repository or directly to Licensor.

15. Trademarks

No rights in DKverse, DKvault, DKmarket, DKarena, DKchat or related marks are granted unless Schedule 1 expressly grants limited brand use. Any permitted brand use must comply with Licensor brand guidelines and must not imply Licensor operational involvement or endorsement beyond the existence of this license.

16. No Partnership; No Agency; No Control

The Parties are independent contractors. This Agreement does not create a partnership, joint venture, employment, franchise, fiduciary, agency, advisory, management, control, representative or shareholder relationship. Operator has no authority to bind Licensor. Licensor has no authority or obligation to bind, control or manage Operator.

17. Assignment and Change of Control

Operator may not assign this Agreement without Licensor prior written consent, except in connection with a sale of substantially all of the DKverse-Based Business if the successor assumes this Agreement in writing. Any attempted assignment in violation of this section is void.

18. Termination

Licensor may terminate this Agreement upon material breach by Operator if the breach is not cured within thirty (30) days after written notice. Upon termination, Operator shall cease use of the Licensed Work and reserved brand assets, except that accrued payment, audit, confidentiality, indemnity, limitation of liability, no-partnership and dispute provisions shall survive.

19. Governing Law and Forum

Governing law and forum should be completed after counsel review based on the Operator jurisdiction and enforcement strategy. Placeholder: This Agreement shall be governed by the laws of [JURISDICTION], without regard to conflict-of-law rules, and disputes shall be resolved in [COURTS / ARBITRATION FORUM].

20. Entire Agreement; Amendments

This Agreement, including Schedule 1, is the entire agreement between the Parties concerning commercial use of the Licensed Work and supersedes prior discussions. Any amendment must be in writing and signed by both Parties.

Schedule 1 - Business Description and Commercial Terms

Field	To be completed
Operator legal name	[LEGAL NAME]
Operator jurisdiction / registration number	[JURISDICTION / NUMBER]

Commercial product name	[PRODUCT NAME]
Description of DKverse-Based Business	[DESCRIPTION]
Commercial launch date	[DATE]
Revenue threshold	USD 50,000 annual Net Revenue unless modified here: []
Annual royalty	2.0% of Adjusted Annual Net Operating Profit for 10 years
Exit fee	0.50% of Net Exit Proceeds during the 10-year term
Permitted brand use	[NONE unless expressly granted]
Governing law / forum	[TO BE COMPLETED BY COUNSEL]

Signature Blocks

LICENSOR: Rafael Minuti

Signature: _____

Date: _____

OPERATOR / LICENSEE: [LEGAL NAME]

By: _____

Name: _____

Title: _____

Date: _____